

25STCV02161 25STCV02161

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Case Number: 25STCV02161 Hearing Date: August 17, 2026 Dept: 735

NUSSBAUM

APC vs BRENDAN BAKIR

Plaintiff

Nussbaum APC's Motion to Compel Further Responses to Request for Production of Documents, Set One and Request for Monetary Sanctions

On January 27,

2025, Plaintiff Nussbaum APC ("Plaintiff") filed a complaint against Defendant Brendan Bakir ("Defendant"). On June 18, 2026, Plaintiff filed the instant motion. Defendant has not filed an opposition to the pending motion involving requests for production of documents; instead, Defendant's opposition involves special interrogatories.

Plaintiff seeks

further responses to Requests for Production ("RPD") nos. 1-30. In a motion to compel further responses to a demand for production, the party who asks the trial court to compel production must show 'good cause' for the request—but unless there is a legitimate privilege issue or claim of attorney work product, that burden is met simply by a fact-specific showing of relevance. Here, Plaintiff has shown good cause for RPD nos. 1-30. RPD nos. 1-2 request documents related to Defendant's responses to interrogatories; RPD nos. 3-7 regard agreements, communications, invoices, the outstanding balance owed by Defendant, and payments made by Defendant; RPD nos. 8-11 relate to communications between the parties regarding demands for payment, and invoices; RPD no. 12 regards documents related to the instant action, PRD nos. 13-19 regard documents about credits, offsets, payments made, contentions that Defendant does not owe the amount identified, objections to the invoices, payments made by checks, wire confirmations, and payment records, RPD nos. 20-22

regard the Bae Action, RPD nos. 23-26 regard the PCH action, RPD nos. 27 regards documents about the amount Defendant agreed are owed to Plaintiff, RPD nos. 28-29 regard disputes related to the invoices and defenses Defendant intends to raise, and RPD no. 30 regards accounting records, ledgers or financial records. All of these documents are relevant to the issue of whether and how much Defendant owes Plaintiff under the invoices issued by Plaintiff.

Additionally, Defendant asserts boilerplate objections for every single response and asserts claims of privilege and attorney work-product protections. As such, Defendant must produce a privilege log pursuant to Code of Civil Procedure section 2031.240, subdivision (c)(1).

Plaintiff requests \$2,435.00 in monetary sanctions. The Court declines to award sanctions because law firms representing themselves may not recover attorney's fees as sanctions. Plaintiff argues that it is still entitled to fees as a corporation being represented by in-house counsel under *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1092–1094. The case cited by Plaintiff in support of this argument, however, does not involve a law firm and Plaintiff does not present evidence showing the counsel working on this action are special “in-house” counsel with an agency relationship to represent the corporate law firm's interests. Plaintiff also attempts to rely on *Gilbert v. Master Washer & Stamping Co., Inc.* (2001) 87 Cal.App.4th 212 where the court held that an individual attorney represented by other attorneys in his firm was not a litigant in propria persona and was not barred from recovery of reasonable attorney fees. (Id. at p. 220.) Here, in contrast, the party is the law firm itself. Thus, *Gilbert* does not apply.

CONCLUSION

The Court grants Plaintiff's motion to compel further responses to Requests for Production of Documents, Set One from Defendant.

The Court orders Defendant to serve responses to Plaintiff's Requests for Production of Documents, Set One, without objections, within 30 days.

The Court denies Plaintiff's request for monetary sanctions.

Plaintiff shall
give notice.